

Rajendra Singh Baghel v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 5 February 2015 · WRIT - C No. 6793 of 2015 · **Writ dismissed; bill challenge relegated to clause 6.5.**

HEADNOTE

A consumer objecting to a bill raised by Dakshinanchal Vidyut Vitran Nigam Ltd. must challenge it under clause 6.5 of the Electricity Supply Code, 2005. A writ petition is dismissed where that statutory alternative remedy is available.

FACTUAL SUMMARY

Rajendra Singh Baghel filed Writ-C No. 6793 of 2015 in the Allahabad High Court against U.P. Power Corporation Ltd. and two others, disputing a bill raised by Dakshinanchal Vidyut Vitran Nigam Ltd., Agra. Counsel for the petitioner and the Standing Counsel for the State-respondents were heard. The Court was asked to interfere with that demand in writ jurisdiction and did not examine the quantum or correctness of the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

If the consumer has any objection to a bill raised by the distribution licensee, the proper remedy is to challenge the bill in accordance with clause 6.5 of the Electricity Supply Code, 2005; a writ petition is dismissed for availability of that statutory alternative remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S OBJECTION TO THE BILL RAISED BY DAKSHINANCHAL VIDYUT VITRAN NIGAM LTD., AGRA

Dismissed solely for the statutory alternative remedy under clause 6.5. ¶ 1